Noble Antwi

February 12, 2026

ITMS-583: Digital Evidence

The Video Privacy Protection Act (VPPA): When a 1988 VHS-Era Statute Meets Modern Digital Tracking

I. Introduction: The VPPA has become the unlikely centerpiece of modern digital privacy litigation, generating over 150 class actions annually as courts struggle to apply a 1988 language about "video cassette tapes" to Meta Pixel tracking technology, and the resulting circuit splits demonstrate that only congressional modernization can resolve the fundamental disconnect between the statute's antiquated definitions and the technical realities of how websites transmit viewing data to advertising platforms as of today, in an ever changing technological landscape.

A. The Video Privacy Protection Act was passed in 1988 after a reporter obtained **Judge Robert Bork's video** rental records from his local Blockbuster movie store and published them during his Supreme Court confirmation hearings. This singular act prompted Congress to create federal protection for video viewing privacy.

B. The original statute was written for a world of physical VHS tapes rented from brick-and-mortar stores, where disclosure meant a store clerk physically telling someone what movies you rented, not automated millisecond data transmissions to advertising networks (indicating the growth of IT and its impact on all spheres of life).

C. Starting in late 2022, plaintiffs' lawyers discovered that websites embedding Meta Pixel on video pages were transmitting Facebook user IDs alongside video titles to Meta's servers, triggering an explosion of VPPA litigation that has generated over 150 class actions per year since 2024.

D. Three major circuit splits have emerged over fundamental definitional questions - what counts as a "consumer," what constitutes "personally identifiable information," and which entities qualify as "video tape service providers" - creating a fractured legal landscape where identical complaints filed in different circuits produce opposite outcomes.

E. The U.S. Supreme Court granted certiorari on January 26, 2026, in ***Salazar v. Paramount Global*** to resolve the consumer definition split, marking the first time the Court will directly interpret the VPPA's scope and potentially determining whether the current litigation wave continues or collapses.

F. Thesis: The VPPA's failure to define critical terms like "authorization," "personally identifiable information," and "video tape service provider" with technological precision has created irreconcilable circuit splits and enforcement chaos that demonstrates the statute is fundamentally incompatible with modern digital tracking technologies, and only comprehensive congressional modernization - including technology-neutral definitions, clear standards for what data constitutes PII in the digital context, explicit coverage of tracking pixels and similar technologies (and new unforeseen technological advancements), and alignment with contemporary state privacy laws - can resolve the current legal uncertainty and provide meaningful privacy protection in the streaming era.

II. Body: How outdated statutory language has created three circuit splits and rendered the VPPA unworkable in the digital age

A. The first circuit split centers on who qualifies as a "consumer" under the VPPA, with the Supreme Court set to resolve whether any commercial relationship with a video provider suffices or whether consumers must specifically subscribe to audiovisual content.

1. The statute defines consumer as "any renter, purchaser, or subscriber of goods or services from a video tape service provider" but provides no clarification on what "goods or services" means in this context.
    a. The Second Circuit in Salazar v. NBA and the Seventh Circuit in Gardner v. Me-TV adopted the broad interpretation, holding that subscribing to anything from a video provider - even a free email newsletter - satisfies the consumer requirement.
        (1.) The Second Circuit declared that the VPPA "is no dinosaur statute" and reasoned that the text says "goods or services" without limiting these to audiovisual products, so any subscription relationship creates consumer status.
        (2.) This interpretation means that anyone who signs up for a website's email updates or creates a free account automatically becomes a VPPA-protected consumer if that website also happens to have video content.
    b. The Sixth Circuit in Salazar v. Paramount Global and the D.C. Circuit in Pileggi v. Washington Newspaper Publishing reached the opposite conclusion, holding that consumer requires subscription to goods or services "in the nature of video cassette tapes or similar audio-visual materials."
        (1.) Judge Randolph's D.C. Circuit concurrence argued the VPPA is "largely obsolete" and should be interpreted narrowly to avoid

extending 1988 legislation to contexts Congress never contemplated.

(2.) This narrow interpretation would eliminate most pixel tracking cases because plaintiffs typically visit news websites or company pages for general content, not to consume video specifically.

c. The Eleventh Circuit has previously interpreted ‘subscriber’ narrowly, suggesting that a minimal or purely passive relationship may be insufficient to establish consumer status.

2. The Supreme Court granted certiorari in Salazar v. Paramount Global specifically to resolve this split, with oral argument expected during the October 2026 term and a decision likely in early 2027.

   a. The Court's decision will either sustain or collapse the current VPPA litigation wave because nearly all pixel tracking cases involve plaintiffs who visited websites for general content rather than specifically to consume video.

   b. A narrow ruling limiting "consumer" to subscribers of audiovisual content would effectively end most tracking pixel litigation, while a broad ruling would open VPPA liability to virtually any website with video content and any form of user relationship.

3. This definitional chaos stems from Congress using 1988 Blockbuster-era language that assumed clear transactional relationships - you walked into a store, showed your membership card, and rented a specific VHS tape - rather than the ambient,

passive video consumption that happens when someone scrolls past an embedded video on a news article.

B. The second circuit split concerns what data constitutes "personally identifiable information," with courts divided between a forward-looking "reasonably and foreseeably likely" standard and a restrictive "ordinary person" test that has increasingly dominated recent decisions.

1. The VPPA defines PII as "information which identifies a person as having requested or obtained specific video materials or services" but provides zero guidance on what "identifies" means in practice, especially for coded digital identifiers.

    a. The First Circuit in Yershov v. Gannett adopted the "reasonably and foreseeably likely" standard, holding that PII includes data that could foreseeably be linked to identify someone's video viewing even if not immediately readable by humans.

        (1.) In Yershov, USA Today's app transmitted device IDs, GPS coordinates, and video titles to Adobe Analytics, and the court held this was PII because Adobe - a sophisticated analytics company - could reasonably link these data points to identify individuals.

        (2). The First Circuit focused on what the actual recipient of the data could do with it, not on whether an average person could make sense of the raw transmission.

    b. The Third Circuit in In re Nickelodeon, the Ninth Circuit in Eichenberger v. ESPN, and now the Second Circuit in Solomon v. Flipps Media have all adopted the narrower "ordinary person" test.

(1.) The ordinary person standard asks whether information "would readily permit an ordinary person to identify a specific individual's video-watching behavior" - essentially, could a regular non-technical person look at the data and figure out who watched what.

(2.) The Second Circuit's Solomon decision in May 2025 held that Meta Pixel transmissions of Facebook IDs and video titles embedded in dense, unlabeled code strings do not constitute PII because an ordinary person couldn't decipher these transmissions.

(3.) In Hughes v. NFL in June 2025, the Second Circuit rejected arguments that ChatGPT could be used to "translate" the code or that Facebook's ubiquity among Americans should matter, stating that "the only relevant inquiry is whether an ordinary person would be able to understand the actual underlying code communication itself."

c. Recent appellate decisions increasingly favor the narrower ‘ordinary person’ standard, although the First Circuit continues to apply a broader approach.

(1.) This creates massive forum-shopping incentives because the same Meta Pixel implementation would violate the VPPA in the First Circuit but not in the Second, Third, or Ninth Circuits.

(2.) Some district courts like Manza v. Pesi, Inc. in Wisconsin have rejected the ordinary person's test as having "little textual basis" in the statute, introducing even more uncertainty at the trial court level.

2. From a digital forensics' perspective, the ordinary person's standard renders highly technical evidence legally irrelevant because it asks what a layperson could discern rather than what the data actually reveals when properly analyzed.

a. Forensic examiners can trace Meta Pixel data flows with precision using network proxy tools like Charles Proxy and Fiddler, capturing every HTTP request parameter, cookie value, and header field transmitted.

b. HAR file analysis can definitively show that a Facebook user ID was transmitted in the same pixel firing event as a video URL or title, creating a technical link between identity and viewing behavior.

c. But under the ordinary person standard, this expert forensic analysis doesn't matter if the average person couldn't look at the raw pixel code and immediately understand what it means.

3. The 1988 statute assumed PII meant something obvious like your name and address written on a rental form, not algorithmic identifiers designed to be machine-readable rather than human readable.

C. A third emerging circuit split addresses which entities qualify as "video tape service providers," with courts divided on whether entities that merely use video content incidentally or provide limited viewing licenses fall within the statute's scope.

1. The statutory definition covers entities "engaged in the business of rental, sale, or delivery of prerecorded video cassette tapes or similar audio visual materials," but modern video distribution rarely involves anything resembling rental or sale.

a. The Eighth Circuit in Christopherson v. Cinema Entertainment and the Ninth Circuit in Osheske v. Silver Cinemas held that movie theaters are not video tape service providers because they provide a limited license to view content in a specific location rather than renting or selling anything.

(1.) The courts reasoned that the VPPA contemplates transactions where customers take audiovisual materials with them - rental implies temporary possession, sale implies permanent ownership, delivery implies transfer of a physical or digital good.

(2.) A movie theater ticket doesn't give you any of that - you watch the film in their building and leave with nothing, which doesn't match any of the statute's enumerated business models.

b. District courts in the Central District of California have held that companies using video merely for "brand awareness" or marketing purposes are not video tape service providers in Carroll v. General Mills.

(1.) General Mills had videos on their website showing cereal commercials and product information, but the court found this incidental use doesn't make them a business engaged in video rental or sale.

(2.) This creates a line-drawing problem - at what point does a company with video content on its website cross the threshold into being a "video tape service provider" subject to VPPA obligations.

c. The Southern District of New York found in Aldana v. GameStop that video game retailers may qualify as video tape service providers because video games contain "cut scenes" and story content that could be considered audiovisual materials.

2. These inconsistent interpretations reflect the fundamental problem that the 1988 statutory categories don't map onto how people actually encounter video content in 2026.

a. Nobody "rents" or "buys" or receives "delivery of" video in the traditional sense anymore - they stream it, they scroll past it embedded in articles, they watch ads auto-play, they see product demos.

b. The statute was written for Blockbuster Video, Hollywood Video, and local mom-and-pop rental stores, not for YouTube, TikTok, news websites with embedded video players, or corporate marketing pages with product videos.

D. The technical mechanics of how Meta Pixel transmits viewing data demonstrate why 1988 statutory language cannot adequately regulate 2026 technology.

1. Meta Pixel operates through a JavaScript code snippet embedded in a website's HTML that loads asynchronously from Facebook's servers and fires HTTP GET requests carrying structured data payloads.

a. When a user views a page containing video content, the pixel automatically transmits the full page URL including the video title, the user's Facebook ID if logged into Facebook, screen dimensions, device information, timestamps, IP address, and browser metadata.

(1.) The Facebook ID is the critical forensic detail - it's a unique numeric string tied directly to a specific person's Meta profile, transmitted simultaneously with the video URL or title.

(2.) The pixel employs two first-party cookies central to tracking - the _fbp cookie assigns a persistent browser identifier with a rolling 90-day expiration enabling cross-session tracking, and the _fbc cookie captures Facebook click IDs when users arrive via Facebook ads.

b. Meta's Advanced Matching feature extends data collection further by either manually receiving hashed user data that developers explicitly pass or automatically scraping recognizable form fields from the page without explicit developer configuration.

(1.) All Advanced Matching data is hashed with SHA-256 before transmission except for the _fbp and _fbc cookies, which are sent as plaintext strings that can be directly read.

(2.) Meta's Conversions API adds a server-side data pathway that bypasses browser-level privacy controls entirely, sending data directly from the advertiser's server to Facebook's servers via authenticated API calls that are completely invisible to browser-based forensic tools.

2. Google Analytics 4, TikTok Pixel, and Adobe Analytics operate through analogous mechanisms, creating parallel tracking ecosystems with different identifiers but similar privacy implications.

a. GA4 uses the _ga cookie containing a Client ID with a 2-year expiration and transmits event-based data to Google's collection endpoints.

b. TikTok Pixel collects IP addresses, User Agent strings, keystroke patterns, battery state, and audio settings alongside standard browsing data.

c. Adobe Analytics uses s_vi and AMCV_* cookies with beacon-based transmission to Adobe's servers.

3. The VPPA's 1988 drafters never contemplated automated, millisecond data transmissions happening invisibly in the background while someone simply reads a news article or looks at a company website.

a. The statute's language assumes deliberate, knowing disclosure - a video store clerk physically telling someone what tapes you rented, or a store selling its customer rental records to a mailing list company.

b. There's no statutory framework for evaluating whether an automated JavaScript event firing triggered by page load constitutes "disclosure" of viewing information, or whether embedding a third-party pixel counts as the video provider "knowingly disclosing" data versus a technical implementation choice.

E. Digital forensic examination of VPPA violations follows established methodologies, but the legal frameworks for evaluating this evidence remain deeply uncertain.

1. Forensic investigators use network proxy tools, browser developer tools, and specialized extensions to capture tracking pixel transmissions and analyze the data flows.

a. Charles Proxy and Fiddler capture all HTTP/HTTPS traffic between a user's device and the internet, with SSL/HTTPS decryption enabling inspection of encrypted tracking requests.

(1.) Wireshark provides packet-level capture for non-HTTP protocols and can record the complete network conversation including TCP handshakes and TLS negotiation.

(2.) Browser Developer Tools in Chrome, Firefox, and Edge record all network requests in real-time and export them as HAR files - JSONformatted archives containing complete request/response headers, cookies, URL parameters, POST bodies, and timing data.

b. Specialized browser extensions like Meta Pixel Helper and Google Tag Assistant detect and validate tracking pixel implementations, showing what events fire, what data is transmitted, and whether the pixel is configured correctly.

c. For browser artifact analysis, tools like Hindsight for Chrome artifacts, DB Browser for SQLite for browser databases, and comprehensive forensic suites like Magnet IEF or Autopsy extract cookies, browsing history, local storage, and cached content.

2. The core forensic question in VPPA cases is whether the captured data can link a specific identifiable user to specific video viewing behavior, but the circuit splits mean the same evidence is evaluated under completely different legal standards.

a. In the First Circuit, forensic evidence showing that a sophisticated analytics company received device IDs, IP addresses, and video titles in the same transmission would satisfy the "reasonably and foreseeably likely" PII standard.

b. In the Second, Third, and Ninth Circuits, that exact same forensic evidence would fail the ordinary person test because the coded format of the transmission isn't immediately readable by a layperson.

c. This means digital forensic methodology has outpaced legal doctrine - examiners can trace data flows with precision, but increasingly the courts hold this technical evidence legally irrelevant by asking what a non-expert could discern.

3. Forensic examiners face significant challenges unique to tracking pixel evidence that the VPPA provides no framework for addressing.

a. The ephemerality of tracking events - which occur in real-time during browsing and are not persistently stored unless captured - requires contemporaneous evidence preservation that the statute's "disclosure" language doesn't anticipate.

b. HTTPS encryption necessitates proxy-based man-in-the-middle decryption, raising questions about whether the forensic capture process itself alters the evidence.

c. Server-side tracking through Conversions API is entirely invisible at the browser level, creating potential VPPA violations that are forensically undetectable without access to the website operator's server logs.

d. Dynamic website code updates can alter tracking configurations between the time of the alleged violation and forensic examination, and the VPPA provides no standards for how to handle this temporal challenge.

F. Congress has not amended the VPPA since 2012, and no reform bills have been introduced despite the massive litigation wave, forcing courts to essentially legislate through judicial interpretation.

1. The VPPA has been amended only once since 1988 - the Video Privacy Protection Act Amendments Act of 2012 was the so-called "Netflix Amendment" that allowed electronic consent via the internet and durable advance consent for up to two years.

a. This amendment was driven entirely by Netflix's desire to enable Facebook social sharing integration, not by any comprehensive rethinking of the statute's scope or definitions.

d. The 2012 amendment didn't touch the definitions of consumer, PII, or video tape service provider - it only addressed the consent mechanism.

2. No standalone VPPA reform or modernization bills have been introduced in the 118th or 119th Congress covering 2023-2026, despite numerous class actions being filed annually since 2024.

   a. Two comprehensive federal privacy proposals - the American Data Privacy and Protection Act in 2022 and the American Privacy Rights Act in 2024 - would have affected the VPPA had they advanced.

      (1.) The ADPPA passed the House Energy and Commerce Committee 53-2 but stalled before reaching the floor vote.

         (2.) The APRA was released as a discussion draft by Senate Commerce Chair Cantwell and House Energy and Commerce Chair McMorris Rodgers, explicitly classified "video programming viewing information" as sensitive covered data, and would have preempted most state privacy laws.

   b. Both proposals died in Congress, leaving the United States without comprehensive federal privacy legislation and the VPPA completely unreformed.

3. The FTC has tried to address tracking pixel privacy through adjacent enforcement theories since it lacks direct VPPA authority.

   a. Under the Health Breach Notification Rule, the FTC secured enforcement actions against GoodRx, BetterHelp for $7.8 million, Cerebral for $7 million, and Easy Healthcare/Premom - all involving Meta Pixel transmission of sensitive data.

   b. In July 2023, the FTC and HHS jointly sent warning letters to 130 hospital systems and telehealth providers about tracking pixel privacy risks.

c. The FTC's Office of Technology published technical guidance explaining how tracking pixels operate and declaring that web browsing data tied to persistent identifiers is "sensitive. Full stop."

4. Congressional inaction has forced the judiciary into a quasi-legislative role where the Supreme Court's interpretation in Salazar v. Paramount Global will function as de facto statutory reform.

A. Modern state privacy laws demonstrate what comprehensive video privacy protection could look like, but the VPPA's private right of action with statutory damages creates enforcement incentives that no modern statute replicates.

1. The VPPA contains no preemption clause and operates as a federal floor, leaving states free to enact broader protections, and approximately a dozen states have video privacy analogues.

    a. Michigan's Preservation of Personal Privacy Act stands out as the most expansive, covering video recordings, sound recordings, and written materials with minimum damages of $5,000 per violation - double the VPPA's $2,500.

    b. These state analogues generally follow the VPPA's model of private rights of action with statutory damages, creating parallel litigation opportunities.

2. Modern comprehensive state privacy laws like CCPA/CPRA and the eight states whose laws took effect in 2025 dwarf the VPPA in scope but generally lack its enforcement mechanism.

    a. The CCPA defines "personal information" broadly enough to encompass IP addresses, device identifiers, and any information "linked or reasonably linkable" to an individual - categories that courts have increasingly held fall outside the VPPA's PII definition under the ordinary person standard.

(1.) However, the CCPA restricts private lawsuits to data breaches - general privacy violations are enforceable only by the California Privacy Protection Agency and Attorney General, not by individual plaintiffs.

(2.) Virginia, Colorado, Connecticut, and the additional eight states with comprehensive privacy laws in 2025 rely exclusively on attorney general enforcement with no private right of action at all.

b. This enforcement asymmetry explains the VPPA litigation explosion - the statute's $2,500 minimum statutory damages with a private right of action creates financial incentives for class action attorneys that no modern comprehensive privacy law provides.

c. The VPPA litigation thus runs parallel to state wiretapping claims under California's Invasion of Privacy Act and federal/state Electronic Communications Privacy Act suits - all driven by the same underlying tracking pixel conduct but channeled through different statutory frameworks.

III. Conclusion: The VPPA stands at a decisive inflection point where the Supreme Court's forthcoming decision will either sustain or collapse the current litigation wave, but regardless of that outcome, only comprehensive congressional modernization can align the statute with digital reality.

A. The Supreme Court's decision in Salazar v. Paramount Global will resolve the consumer definition split and determine whether the VPPA reaches any subscriber of any service from a video provider or only consumers of audiovisual content specifically.

1. A broad ruling would open VPPA liability to virtually any website with video content and any form of user relationship, potentially including email newsletter signups or account creation.
2. A narrow ruling limiting "consumer" to subscribers of audiovisual content would effectively end most tracking pixel litigation because plaintiffs typically visit websites for general content rather than to consume video.

B. The Second Circuit's Solomon and Hughes decisions have already effectively eliminated pixel-based claims in the nation's most active VPPA jurisdiction by holding that coded data transmissions fail the ordinary person PII test, demonstrating that even without Supreme Court intervention, the litigation wave may be self-limiting.

1. If other circuits follow the Second Circuit's approach to the ordinary person standard, Meta Pixel and similar tracking technologies will fall outside the VPPA's scope regardless of how the consumer question is resolved.
2. This would leave a massive gap in video privacy protection because the same data flows that courts hold don't constitute PII under the ordinary person standard would clearly qualify as personal information under the CCPA or GDPR's broader definitions.

C. Only congressional action can resolve the fundamental disconnect between 1988 statutory language and 2026 technological reality, but the specific reforms needed are clear from the circuit splits and forensic challenges.

1. Congress should replace the archaic "video cassette tape" language with technology-neutral definitions covering any video content provider regardless of delivery mechanism, including streaming platforms, embedded video players, social media, and any other method of making video available.

2. The PII definition needs explicit modernization to address algorithmic identifiers, hashed data, persistent cookies, device fingerprints, and any data that can be reasonably linked to identify individuals even if not immediately human-readable.

a. The statute should adopt a standard closer to the CCPA's "linked or reasonably linkable" framework or the GDPR's "all means reasonably likely to be used" approach rather than the ordinary person test.

b. Congress should clarify whether the relevant inquiry is what the recipient of the data can do with it - the Yershov approach - or what an average person could discern from the raw transmission - the Solomon approach.

3. The consumer definition should be clarified to either explicitly require subscription to audiovisual content specifically, or explicitly state that any subscriber relationship with a video provider suffices, eliminating the current circuit split.

4. Congress should address tracking pixels and similar technologies explicitly rather than forcing courts to shoehorn automated data transmissions into "disclosure" language written for human-to-human communications.

a. The statute should specify whether embedding a third-party tracking pixel constitutes "knowingly disclosing" viewing information, or whether different standards apply to automated technical implementations versus deliberate human disclosure decisions.

b. Server-side tracking through APIs like Meta's Conversions API should be explicitly covered since these transmissions are invisible to users and browser-level privacy controls.

5. The $2,500 statutory damages should be adjusted for inflation - that amount set in 1988 would equal approximately $6,500-$7,000 today - but Congress should also consider whether statutory damages remain appropriate for every technical violation or whether some violations should require actual harm.

D. The VPPA's experience demonstrates the limitations of sectoral privacy legislation and strengthens the case for comprehensive federal privacy reform that would address video viewing data as part of a broader framework rather than as an isolated category.

1. The U.S. sectoral approach leaves the VPPA as one narrow pillar alongside HIPAA, COPPA, FERPA, and GLBA, creating gaps where data that doesn't fit a specific category goes unprotected.

2. Comprehensive frameworks like the GDPR would regulate tracking pixels and viewing data under general principles of lawfulness, purpose limitation, and data minimization rather than requiring specific sectoral legislation for each data type.

E. Until Congress acts, the VPPA will remain a statute frozen in 1988 being applied to 2026 problems, with courts forced into the uncomfortable position of either stretching antiquated language beyond recognition or leaving modern privacy invasions unaddressed because they don't fit Blockbuster-era categories.